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Texas Expunction & Nondisclosure Statewide — Agent Training Reference

A complete statewide operational knowledge base for clearing criminal records in Texas: expunction (Chapter 55A) vs. orders of nondisclosure (Government Code Ch. 411), eligibility, waiting periods, disqualifiers, the county-of-arrest filing rule, and record requests — applicable across all 254 counties.

Prepared for	LegalEase / Expungement.ai — Wilma assistant
Coverage	State of Texas — all 254 counties (district court of the county of arrest or prosecution)
Primary statutes	Code of Criminal Procedure Ch. 55A (expunction); Government Code Ch. 411, Subch. E-1 (nondisclosure)
Controlling change	HB 4504 (88th Leg.) repealed Ch. 55 and enacted Ch. 55A, effective January 1, 2025
Companion doc	A separate Harris County reference covers Houston-specific filing mechanics
Currency	Reflects law as of mid-2026, incl. the Chapter 55A recodification

VERIFY BEFORE RELYING

Texas recodified its expunction law on January 1, 2025: HB 4504 repealed Chapter 55 of the Code of Criminal Procedure and replaced it with CHAPTER 55A. Substantive eligibility largely carried forward, but article numbers changed (the petition/venue rule is now Art. 55A.251), and the new chapter adds streamlined acquittal and specialty-court procedures. Nondisclosure remains under Government Code Chapter 411, Subchapter E-1. Procedure varies by county — each district clerk and district attorney has local practices — so the agent must cite Chapter 55A (not the repealed Chapter 55) and confirm the specific county's filing and notice requirements before relying on them.

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How the agent should use this document

This is the STATEWIDE Texas reference; a separate document covers Harris County (Houston) specifics. Texas has two distinct tools and the agent must route to the right one. **Expunction** (Chapter 55A) ERASES the record — every agency destroys or returns it and the person may legally deny the arrest occurred — but it is generally limited to NON-convictions (acquittals, dismissals, no-charge arrests, certain pardons). **Order of nondisclosure** (Government Code Ch. 411) SEALS the record from most private requesters while keeping it visible to law enforcement, courts, and licensing agencies — and it is the tool for many deferred-adjudication and some conviction situations where expunction is unavailable. The agent should always (1) determine the disposition; (2) if a non-conviction, test expunction eligibility and the waiting period; (3) if a conviction or completed deferred adjudication, test the correct nondisclosure subtype; and (4) apply the county-of-arrest filing rule.

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Statutory shorthand used throughout

CCP Ch. 55A	EXPUNCTION of criminal records (record destruction) — replaced Ch. 55 on 1/1/2025
Art. 55A.251	FILING: ex parte petition in a district court for the county of arrest or prosecution
55A acquittal / specialty	Streamlined orders (e.g., 30-day) on acquittal or specialty-court dismissal
Gov't Code 411.072	NONDISCLOSURE — automatic for certain nonviolent misdemeanor deferred adjudications
411.0725	NONDISCLOSURE — successfully completed DEFERRED ADJUDICATION (petition)
411.0735	NONDISCLOSURE — certain CONVICTIONS after community supervision / release
411.075(b)	Agencies DPS must notify of a nondisclosure order
HB 4504	88th Leg.; recodified expunction into Ch. 55A, eff. Jan 1, 2025

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1. Eligibility rules

Two tools, considered by disposition.

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Expunction (Chapter 55A) — erases the record, non-convictions

Available, generally, where the case did NOT end in a conviction or completed deferred adjudication (with limited exceptions). Eligible categories:

- **Acquittal** (found not guilty) — Ch. 55A provides a streamlined procedure; on request and after notice to the State, the court may enter an expunction order as early as the 30th day after acquittal.
- **Pardon** — a full pardon by the Governor of Texas or the President, including a pardon based on actual innocence (and certain other pardons).
- **Dismissal** — the charge was dismissed and the person was never placed on court-ordered community supervision for that offense (limited exceptions for certain Class C deferred dispositions).
- **No charges filed** — the person was arrested but the prosecutor never brought a case, and the applicable waiting period (Section 2) has passed.
- **Mistaken identity** — the person was arrested, or their identifiers ended up in an arrest record, due to a clerical error or identity theft.
- **Statute of limitations expired** with no charge, or a void/quashed charging instrument.
- **Specialty-court dismissal** (e.g., veterans treatment court) — a streamlined ~30-day expunction order with the State's consent.

Order of nondisclosure (Gov't Code Ch. 411) — seals from public, broader reach

Available for many situations expunction cannot reach, principally completed deferred adjudication and some convictions. Main subtypes:

- **§ 411.072 — automatic nondisclosure:** since September 2017, courts must automatically issue a nondisclosure order for certain nonviolent misdemeanors when the person completes deferred adjudication — often no petition is needed.
- **§ 411.0725 — deferred adjudication (petition):** after successful completion and discharge/dismissal, seals the record; waiting periods vary by offense (Section 2).
- **§ 411.0735 — certain convictions:** seals some misdemeanor convictions after completion of the sentence and a waiting period.
- **§ 411.0731 / DWI:** first-offense DWI nondisclosure, with a shorter wait if an ignition interlock was used for the required term.

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AGENT GUIDANCE

Route by disposition first. Acquittal, no-charge arrest, qualifying dismissal, limitations expired, mistaken identity, or pardon → expunction (erased). Completed deferred adjudication or an eligible conviction → nondisclosure (sealed, not erased).

For nonviolent misdemeanor deferred adjudications completed after Sept 2017, check whether automatic nondisclosure under § 411.072 already applies before preparing a petition.

2. Waiting periods

Expunction waiting periods for arrest-only (no charge filed) cases run by offense level. Nondisclosure waits run from discharge/completion and vary by subtype and offense.

Expunction — arrest with no charge filed (by offense level)

Offense level of arrest	Waiting period before expunction
Class C misdemeanor	180 days from arrest
Class A or B misdemeanor	1 year from arrest
Felony	3 years from arrest

These arrest-only waits do not apply where a disposition makes the person immediately entitled (acquittal, qualifying dismissal, prosecutor certification that records are not needed, or limitations expired) — those can be sought without the level-based wait, and acquittals follow the streamlined ~30-day procedure.

Nondisclosure — by subtype

Subtype	Waiting period	Runs from
411.072 automatic (nonviolent misdemeanor deferred)	None (court issues automatically)	Discharge / dismissal
411.0725 deferred — most misdemeanors	None	Discharge / dismissal
411.0725 deferred — misd. under Penal Code chs. 20,21,22,25,42,43,46,71	5 years	Discharge / dismissal
411.0725 deferred — felony	5 years	Discharge / dismissal
411.0735 conviction (eligible misdemeanors)	5 years	Completion of sentence / release
411.072 / DWI first offense	2 years (interlock full term) or 5 years otherwise	Completion

The DWI distinction is the most consequential: a first-offense DWI nondisclosure typically requires only a 2-year wait if an ignition interlock device was used for the full required term, but 5 years otherwise. For deferred adjudication, most ordinary misdemeanors have NO waiting period once discharged, while the enumerated chapters (assaultive, sexual, family, weapons, organized crime, etc.) carry a 5-year wait.

AGENT GUIDANCE

For arrest-only expunctions, compute from the arrest date by level: 180 days (C), 1 year (A/B), 3 years (felony). For dispositions that confer immediate entitlement, there is no level-based wait.

For DWI nondisclosure, ask whether an interlock was used for the full term — it cuts the wait from 5 years to 2.

3. Disqualifying / ineligible situations

Because Texas keys relief to disposition rather than an offense list, the main disqualifiers are about how the case ended and what else is on the record.

Bars to expunction

- **Final conviction** for the offense (other than a later pardon) — convictions are generally not expungeable.
- **Completed deferred adjudication** (other than certain Class C) — the remedy is nondisclosure, not expunction.
- **Court-ordered community supervision (probation)** under Ch. 42A for the offense, except Class C — bars expunction.
- **The “criminal episode” limitation:** a court may deny expunction of an arrest if a felony charge arose from the same criminal episode and the person was convicted of, or remains subject to prosecution for, another offense in that episode.
- **Flight / bail jumping:** a person who fled or skipped bail during the proceedings is barred.
- **Pending charges** arising out of the same arrest.

Bars to nondisclosure

- **Excludable offenses under § 411.074 / § 411.0735:** nondisclosure is unavailable for offenses requiring sex-offender registration, murder and other homicide, family-violence offenses, stalking, violation of a protective order, and similar enumerated crimes.
- **Any conviction or deferred adjudication during the waiting period** (other than a fine-only traffic offense) resets or defeats eligibility.
- **Multiple offenses** in some circumstances — certain nondisclosure subtypes require only the single eligible offense.

Common to both

- **Out-of-state and federal records** are not reachable by Texas expunction or nondisclosure.
- **Family-violence findings** are broadly disqualifying for nondisclosure and complicate expunction.

VERIFY BEFORE RELYING

The nondisclosure exclusion lists (§§ 411.074, 411.0735) and the expunction “criminal episode” and flight rules turn on the exact offense, disposition, and the rest of the person’s record. Chapter 55A renumbered the expunction provisions in 2025. The agent must map the specific disposition and offense to the current statute and verify against the live exclusion lists before declaring eligibility — the offense label and a general “dismissed” are not enough.

AGENT GUIDANCE

The single most common error is assuming a “dismissed” case is automatically expungeable. Dismissal only qualifies if there was no court-ordered community supervision; confirm WHY it was dismissed. Completed deferred adjudication (except certain Class C) is NOT expungeable — route it to nondisclosure.

4. Case outcome rules

Disposition determines the tool, the waiting period, and whether a petition is needed. This table is the agent's primary routing logic statewide.

Case outcome	Tool	Route	Condition / wait
Acquittal (not guilty)	Expunction	Streamlined (~30-day) order	On request + State notice
Arrest, no charge filed	Expunction	Petition	180d / 1yr / 3yr by level
Dismissed (no community supervision)	Expunction	Petition	No same-episode bar
Pardon / actual innocence	Expunction	Petition / order	Pardon granted
Mistaken identity	Expunction	Petition	Clerical error / ID theft
Specialty-court dismissal (e.g., veterans court)	Expunction	~30-day order w/ State consent	On dismissal
Nonviolent misdemeanor deferred (post-9/2017)	Nondisclosure	Automatic (411.072)	Court issues; no petition
Deferred adjudication completed (other)	Nondisclosure	Petition (411.0725)	Per subtype wait
Eligible conviction (misdemeanor)	Nondisclosure	Petition (411.0735)	5 yrs; not excluded
First-offense DWI	Nondisclosure	Petition (411.072/.0731)	2 yrs interlock / 5 yrs
Final conviction (most)	—	No relief except pardon	Excluded

Effect of relief: an expunction destroys the records and the person may deny the arrest ever happened, even under oath, in most contexts. A nondisclosure order seals the record from public and most private background checks, but the Department of Public Safety still shares it with the agencies listed in § 411.075(b) — law enforcement, courts, and many licensing bodies — and the person may not deny it in those contexts.

AGENT GUIDANCE

Tell users plainly which remedy applies. Expunction = erased and deniable; nondisclosure = sealed from most private requesters but visible to the § 411.075(b) list.

Acquittals and specialty-court dismissals now follow streamlined ~30-day procedures — confirm whether the court already ordered relief before preparing a petition.

5. Required forms

Texas relief is by petition/application filed in court. The Office of Court Administration and TexasLawHelp publish statewide forms; many counties also provide local templates. There is no single mandatory statewide expunction form, so the petition must be drafted to Chapter 55A's requirements.

Expunction (Chapter 55A)

- **Petition for Expunction** — an ex parte petition (Art. 55A.251) identifying the petitioner, the arrest (date, agency, offense, cause number), the disposition, the statutory basis under Ch. 55A, and every agency believed to hold records (named for notice). Must be verified.
- **Order of Expunction** — the proposed order the judge signs; it lists each agency directed to destroy or return records. Courts will not grant without a complete proposed order.
- Attach the disposition documentation; many counties require a certified disposition from the arresting agency or court.

Order of nondisclosure (Gov't Code Ch. 411)

- **Petition for Order of Nondisclosure** under the correct section (411.0725 / 411.0735 / DWI provisions), with the offense, cause number, disposition, and waiting-period facts. For § 411.072 automatic nondisclosure, no petition is needed.
- **Order of Nondisclosure** for the judge's signature, directing DPS to seal and notify the § 411.075(b) agencies.
- TexasLawHelp's nondisclosure tools provide the correct form set by subtype.

AGENT GUIDANCE

Pick the form by tool and, for nondisclosure, by the exact § (072 auto vs. 0725 vs. 0735) — the wrong section is a common rejection reason. Always pair the petition with a complete proposed order naming every record-holding agency.

Use TexasLawHelp's statewide tools to assemble the right forms, then check the specific county's local cover sheets and submission method before filing.

6. Filing instructions (statewide / by county)

Expunction is filed as an ex parte petition in a DISTRICT COURT for the county of arrest or prosecution (Art. 55A.251). The general statewide sequence:

- 1 Get your record.** Obtain your Texas DPS criminal history and, for expunction, a certified disposition from the arresting agency or court so the petition is accurate.
- 2 Confirm the tool and eligibility.** Expunction vs. nondisclosure, the waiting period, the disposition-based bars, the criminal-episode / flight rules, and the exclusion lists.
- 3 Prepare the petition and proposed order,** naming every agency that may hold records (DPS, the arresting agency, the prosecuting attorney, the district/county clerk, jail, and reporting databases) for notice.
- 4 File in a district court for the county of arrest or prosecution** (Art. 55A.251). Pay the civil filing fee, which varies by county (often roughly \$250–\$500 for expunction in many counties; some are lower), or file a Statement of Inability to Afford Payment of Court Costs.
- 5 Serve / give notice to the respondent agencies,** including the local prosecutor and DPS, which may agree or contest.
- 6 Hearing.** Expunction petitions are typically set for a hearing; acquittal and specialty-court cases follow the streamlined ~30-day procedures. Nondisclosure petitions may be decided on the papers; automatic nondisclosure (§ 411.072) requires nothing.
- 7 Order and execution.** The judge signs the order; agencies then destroy/return records (expunction) or seal them (nondisclosure) on the statutory timeline. Keep a certified copy.

AGENT GUIDANCE

Venue is the DISTRICT court of the county of ARREST or PROSECUTION — not the county of residence. A person with arrests in multiple counties files a separate petition in each county. Naming every record-holding agency is the make-or-break step — a missed agency means that copy of the record survives. Build the list from the DPS history and arrest paperwork.

7. County / statewide quirks

- **County-of-arrest venue.** File in a district court for the county where the arrest or prosecution occurred (Art. 55A.251) — procedures, cover sheets, and fees vary across all 254 counties.
- **Local DA practices differ.** Some district/county attorneys agree to uncontested expunctions readily; others contest. An agreed expunction moves faster.
- **Automatic nondisclosure since 2017.** For many nonviolent misdemeanor deferred adjudications, the court issues nondisclosure automatically under § 411.072 — verify before filing a petition.
- **Streamlined acquittal / specialty-court orders.** Ch. 55A allows expunction orders as early as ~30 days after an acquittal (on request, with State notice) or a specialty-court dismissal (with the State's consent).
- **Certified disposition often required.** Many counties want a certified disposition from the arresting agency or court attached to the expunction petition.
- **Fee variation.** Expunction civil filing fees differ widely by county; a Statement of Inability to Afford Payment of Court Costs waives them for eligible filers.
- **Processing time.** Allow several months under most counties' civil dockets, longer if contested.
- **Two-prosecutor pattern in some counties.** Depending on the offense, the county/district attorney or a city attorney may be the proper respondent — identify the prosecuting authority.

AGENT GUIDANCE

Pin down the county of arrest/prosecution and the proper district court first; everything else (fees, notice agencies, local cover sheets) follows from venue.

Always check for automatic § 411.072 nondisclosure on nonviolent misdemeanor deferred adjudications before drafting a petition the person may not need.

8. Fee information

Item	Amount	Note
Expunction petition filing	Varies widely by county	Civil filing fee; commonly ~\$250–\$500 in many counties
Nondisclosure petition filing	Filing fee + service	District clerk; varies by county
Automatic nondisclosure (411.072)	\$0	Court issues; no petition
Streamlined acquittal order	\$0	Court orders on acquittal; no separate petition
Texas DPS criminal history	DPS fee	To confirm record before filing
Certified disposition (arresting agency)	Agency fee	Often required
Statement of Inability to Afford Payment	\$0	Waives court costs for eligible filers

Because filing fees are county-set, expunction costs vary widely across Texas — often in the few-hundred-dollar range, with some counties lower. A person who cannot afford the cost may file a Statement of Inability to Afford Payment of Court Costs to proceed without fees. Automatic nondisclosure and streamlined acquittal orders cost nothing because no petition is filed.

AGENT GUIDANCE

Quote expunction fees as a county-dependent range and surface the Statement of Inability to Afford Payment for cost-constrained users. The DPS history and any certified-disposition fee are the near-certain baseline costs.

Lead with the no-cost routes where they apply: automatic § 411.072 nondisclosure and streamlined acquittal expunctions.

9. Criminal history (DPS) request process

An accurate record is the foundation of any Texas filing — the petition must name the arrest, cause number, agencies, and disposition precisely, and eligibility turns on details the user may not remember.

A. Statewide history — Texas Department of Public Safety (DPS)

- DPS maintains the statewide computerized criminal history; a person may obtain their own record (Secure Site / fingerprint-based) for a fee.
- DPS is also the central agency a nondisclosure order directs to seal and to notify the § 411.075(b) entities, and an expunction order directs DPS to destroy/return records.

B. Local records — county district/county clerk and arresting agency

- The district or county clerk in the county of arrest/prosecution holds the court file and cause number; the arresting agency holds the arrest record and any certified disposition needed for expunction.
- Use these to confirm the disposition and to build the complete list of agencies to name in the petition.

C. Federal — FBI Identity History Summary

- For records that may extend beyond Texas, the FBI fingerprint-based Identity History Summary is the federal equivalent; Texas relief reaches Texas records only.

VERIFY BEFORE RELYING

DPS request methods and fees, and county arresting-agency disposition processes, can change. The agent should verify the current Texas DPS criminal-history request process and fee, and the relevant county's disposition process, at the time of advising rather than quoting fixed figures from memory.

AGENT GUIDANCE

Frame the DPS history (plus the arresting-agency certified disposition for expunction) as step one. It both grounds the petition and produces the agency list that must be served — the part that most often determines whether the record is fully cleared.

10. Sample petitions and completed examples

Texas relief is by petition filed in a district court (with a proposed order). The examples below show structure and key recitals for the two tools plus the automatic and streamlined pathways. Names, dates, and identifiers are fictional; venue is a generic Texas county.

Example A — Petition for Expunction (Ch. 55A), dismissed misdemeanor

CAUSE NO. _____

IN THE DISTRICT COURT OF _____ COUNTY, TEXAS

EX PARTE ANDRE L. CARTER

PETITION FOR EXPUNCTION OF CRIMINAL RECORDS (CCP CH. 55A)

1. Petitioner: Andre L. Carter, DOB 07/22/1992, SSN XXX-XX-4471, TX DL _____, residing in Texas.

2. Arrest: 03/02/2024 by (arresting agency); offense charged: theft (Class B misdemeanor); cause no. _____.

3. Disposition: the information was DISMISSED on 06/15/2024; the petitioner was NOT placed on court-ordered community supervision; no felony from the same criminal episode; no flight or bail-jumping; no pending charges.

4. Petitioner is entitled to expunction under Chapter 55A and files this ex parte petition under Art. 55A.251 in the county of arrest/prosecution.

5. Agencies to be served and ordered to destroy/return records: Texas DPS; the arresting agency; the prosecuting attorney; the district/county clerk; county jail; and reporting databases.

PRAYER: enter the attached Order of Expunction directing each named agency to expunge all records of this arrest.

Example B — Petition for Order of Nondisclosure (§ 411.0725), deferred adjudication

CAUSE NO. _____

IN THE _____ DISTRICT COURT OF _____ COUNTY, TEXAS

EX PARTE MARIA S. DELGADO

PETITION FOR ORDER OF NONDISCLOSURE (GOV'T CODE 411.0725)

1. Petitioner completed deferred adjudication for possession of marijuana (Class B misdemeanor); the case was DISMISSED and petitioner discharged on 05/01/2024.

2. The offense is not on the 411.074/411.0735 exclusion list and is not a family-violence, sexual, or registration offense.

3. As an ordinary misdemeanor deferred adjudication, NO waiting period applies under 411.0725 (and automatic nondisclosure under 411.072 may already apply for nonviolent misdemeanors).

4. Issuance is in the best interest of justice.

PRAYER: enter the attached Order of Nondisclosure directing DPS to seal the record and notify the agencies listed in 411.075(b).

Examples C & D — No-filing pathways

C. STREAMLINED EXPUNCTION AT ACQUITTAL (Ch. 55A):

A defendant found NOT GUILTY may, on request and after notice

to the State, obtain an expunction order as early as the 30th day after acquittal -- no full petition process. (The criminal-episode limitation may still bar it.)

D. AUTOMATIC NONDISCLOSURE (Gov't Code 411.072):

For many nonviolent misdemeanor deferred adjudications completed since Sept. 2017, the court issues a nondisclosure order AUTOMATICALLY -- the person need not petition. Confirm via the DPS criminal history.

Proposed Order (both tools)

Each petition is accompanied by a proposed Order. The Order of Expunction lists every named agency and directs each to destroy or return all records of the arrest under Chapter 55A. The Order of Nondisclosure directs the Department of Public Safety to seal the record and to notify the agencies enumerated in Government Code § 411.075(b).

This reference is an internal training and retrieval aid for the Wilma assistant covering Texas statewide; a separate document covers Harris County specifics. It summarizes Texas statutes and common practice and is not legal advice. Texas recodified expunction into Chapter 55A effective January 1, 2025; the agent must verify the current Chapter 55A article numbers, the Government Code Ch. 411 nondisclosure subtypes and exclusion lists, the specific county's filing and notice procedures, and DPS request processes before relying on any rule here.